



CHAPTER cxxi.

An Act to confirm certain Provisional Orders made by the Board of Education under the Education Acts 1870 to 1911 to enable the London County Council to put in force the Lands Clauses Acts. [7th August 1912.] A.D. 1912.

WHEREAS the Board of Education have made certain Provisional Orders under the authority of the Education Acts 1870 to 1911 on behalf of the London County Council (hereinafter called "the Council") and it is requisite that the same should be confirmed by Parliament:

And whereas the lands required to be purchased under the powers granted by the said Provisional Orders and confirmed by this Act are severally described in the schedules to the said Provisional Orders as set out in Parts III. and IV. of the schedule to this Act and are delineated on the plans accompanying the petitions referred to in the said Provisional Orders and copies of the said plans have been duly deposited in the offices of the two Houses of Parliament:

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The following Orders as set out in Parts III. and IV. of the schedule to this Act shall be and are hereby confirmed and from and after the passing of this Act shall have full validity and force. Confirmation of Orders in schedule.

2. Save as otherwise expressly provided nothing herein contained shall be construed to authorise the Council to extinguish public rights of way.

A.D. 1912. any public rights of way without such order being obtained as but for this Act would have been required for that purpose.

Council may appropriate &c. for street widenings portions of land acquired.

3. In the case of any lands which the Council are by this Act authorised to acquire and which abut upon streets or roads which are not in the opinion of the Council sufficiently wide for the accommodation of the present and probable future traffic or for the convenience of the persons using the said streets or roads it shall be lawful for the Council to appropriate take and use for the purpose of widening any such streets or roads so much of the said lands as the Council may determine to be necessary for such purpose:

Provided that if the Council appropriate take or use any part of the said lands for the purpose of widening any street or road such part of the cost of the acquisition thereof and of any expenses incidental to such acquisition as the Council may determine shall be deemed to be part of the costs and expenses of the Council in connexion with street improvements.

No compensation to be paid for improvements &c. made since 1st August 1911.

4. In settling any question of disputed purchase money or compensation payable under this Act by the Council the jury arbitrators or other authority settling the same shall not award any sum of money for or in respect of any improvement alteration or building made or for or in respect of any interest in the lands created after the first day of August one thousand nine hundred and eleven if in the opinion of such jury arbitrators or other authority the improvement alteration or building or the creation of the interest in respect of which the claim is made was not reasonably necessary and was made or created with a view of obtaining or increasing compensation under this Act.

Owners may be required to sell parts only of certain lands and buildings.

5. Notwithstanding section ninety-two of the Lands Clauses Consolidation Act 1845 the owners of and other persons interested in the houses or other buildings or manufactories shown on the deposited plans and distinguished thereon by the numbers specified in Part I. of the schedule to this Act and whereof parts only are required for the purposes of this Act may if such parts can in the opinion of the jury arbitrators or other authority to whom the question of disputed compensation shall be submitted be severed from the remainder of such premises without material detriment thereto be required to sell and convey to the Council the parts only of the premises so required without

the Council being obliged or compellable to purchase the whole or any greater part thereof. A.D. 1912.

6. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Council any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

Persons under disability may grant easements &c.

7. The jury arbitrators or other authority to whom any question of disputed purchase money or compensation under this Act is referred shall if so required by the Council award and declare whether a statement in writing of the amount of compensation claimed has been delivered to the Council by the claimant giving sufficient particulars and in sufficient time to enable the Council to make a proper offer and if the jury arbitrators or other authority shall be of opinion that no such statement giving sufficient particulars and in sufficient time shall have been delivered and that the Council have been prejudiced thereby the jury arbitrators or other authority shall have power to decide whether the claimant's costs or any part thereof shall be borne by the claimant. Provided that it shall be lawful for any judge of the High Court to permit any claimant after seven days' notice to the Council to amend the statement in writing of the claim delivered by him to the Council in case of discovery of any error or mistake therein or for any other reasonable cause such error mistake or cause to be established to the satisfaction of the judge after hearing the Council if they object to the amendment and such amendment shall be subject to such terms enabling the Council to investigate the amended claim and to make an offer de novo and as to postponing the hearing of the claim and as to costs of the inquiry and otherwise as to such judge may seem just and proper under all the circumstances of the case. Provided also that this section shall be applicable only in cases where the notice to treat under the Lands Clauses Acts either contained or was endorsed with a notice of the effect of this section.

Costs of arbitration &c. in certain cases.

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Exemption
from s. 133 of
Lands Clauses
Act 1845.

8. Section one hundred and thirty-three of the Lands Clauses Consolidation Act 1845 (relating to land tax and poor rate) shall not apply in the case of any lands of which the Council become possessed by virtue of this Act.

Tenancies
having not
longer than
18 months
to run.

9. Notwithstanding anything contained in the Lands Clauses Acts any claim for compensation under this Act by any person having or in respect of any interest in the lands in respect of which compensation is claimed not greater than that of a lessee or tenant for any term of which not more than eighteen months remain unexpired at the time when the claim is made shall be determined by justices in the manner provided by section one hundred and twenty-one of the Lands Clauses Consolidation Act 1845.

Power to
Council to
stop up cer-
tain streets.

10.—(1) The Council may stop up the public streets or parts thereof (as the case may be) shown on the deposited plans and distinguished thereon by the numbers specified in Part II. of the schedule to this Act and thereupon all public rights of way over such streets or parts thereof (in this section herein-after referred to as "the streets") shall be extinguished and the Council may appropriate and use the streets for the purposes of Part III. of the Education Act 1902.

(2) The Council may cause to be removed arched over or filled up all such sewers or drains or parts thereof which shall be in or near the streets as shall appear necessary for executing the purposes of this section so that no public sewer or drain (unless the same become unnecessary by reason of the purchase of the property entitled to the use thereof) shall be in anywise disturbed injured or prejudiced without another sewer or drain being made in lieu thereof equally serviceable and convenient Provided that before removing or filling up any sewer or drain or part thereof as aforesaid the Council shall (where necessary) cause to be made and built other good and sufficient sewers and drains in substitution for the sewers or drains which shall be filled up and when made and completed the said sewers and drains shall be under the same jurisdiction care management and direction as the existing sewers or drains.

(3) The Council may in either of the streets raise sink or otherwise alter the position of any watercourse water pipe or gas pipe belonging to or connected with any house or building and also any main pipe or apparatus laid down or used by the

Metropolitan Water Board or any person for carrying a supply of water or water for hydraulic power or gas and also any pipe tube wire or apparatus laid down or placed for supplying electricity or for telegraphic or other purposes and may remove any other obstruction making proper substituted works during any alteration and causing as little detriment and inconvenience as circumstances admit to the said board or to any person and making reasonable compensation to the said board or to any person for any damage caused by any such alteration Provided that before the Council alter the position of any main pipe or apparatus laid down or used by the said board or by any such person they shall (except in cases of emergency) give to the board or person to whom the same belongs notice of their intention to do so specifying the time at which they will begin to do so such notice to be given seven days at least before the commencement of the work for effecting such alteration and such work shall be done under the superintendence (at the expense of the Council) of the board or person to whom such main pipe or apparatus belongs unless such board or person refuses or neglects to give such superintendence at the time specified in the notice for the commencement of such work or discontinues the same during the execution of such work and the Council shall execute such work to the reasonable satisfaction of the board or person Provided also that the Council shall not cause either of the streets to be lowered or raised nor the position of any water or gas main or other pipe to be altered so as to leave over such main pipe or apparatus in any part a covering of less than two feet where the covering now existing is not less than two feet unless the Council shall in such case protect such main pipe or apparatus from frost or injury by artificial covering to the satisfaction of the board or person or more than six feet where the covering now existing does not exceed six feet or more than such existing covering where the same exceeds six feet unless the Council in such case provide special means of access to the same to the satisfaction of the board or person. A.D. 1912.

(4) If within seven days after a notice under subsection (3) of this section shall have been served upon the Metropolitan Water Board or any gas company that board or company so elect such board or company shall themselves execute all such alterations to their mains and pipes as may from time to time

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A.D. 1912. — be necessary and the reasonable costs of executing such alterations shall be repaid by the Council to such board or company. Provided that such alterations shall be carried out in accordance with the directions and to the reasonable satisfaction of the Council.

(5) If any difference arise between the Council and any such board or person touching the amount of any costs or expenses under the foregoing provisions of this section to be paid by the Council to any such board or person or touching any work matter or thing with reference to such mains or other pipes under such provisions to be done or executed by the Council or the mode of doing or executing the same such difference shall be settled by an engineer to be agreed upon by the Council and the board or person as the case may be or failing agreement by such engineer as shall on the application either of the Council or of such board or person be named by the President of the Institution of Civil Engineers.

(6) The powers conferred upon the Council by this section shall not be exercised in regard to the streets specified in Part II. of the schedule to this Act until the Council are owners in possession of all lands and premises having access therefrom and immediately abutting thereupon except so far as the owners lessees and occupiers of such lands and premises may otherwise agree.

(7) Nothing in this section shall extend to authorise the Council to raise sink or otherwise alter the position of any pipe tube wire or apparatus laid down for telegraphic or other purposes and belonging to the Postmaster-General except in accordance with and subject to the provisions of the Telegraph Act 1878.

(8) Nothing in this section shall extend to prejudice or affect any of the provisions for the protection of any undertakers authorised to supply electrical energy contained in any special Act or any Provisional Order confirmed by Act of Parliament.

Short title.

11. This Act may be cited as the Education Board Provisional Orders Confirmation (London No. 1) Act 1912.

SCHEDULE.

A.D. 1912.

PART I.

**PARTS OF PREMISES WHICH MAY BE ACQUIRED COMPULSORILY
 BY THE COUNCIL.**

Metropolitan Borough.	Plan Number.	Distinguishing Number on Plan.
Lewisham - - - - -	41	1
Stepney - - - - -	60	1

PART II.

THE STREETS WHICH MAY BE STOPPED UP BY THE COUNCIL.

Metropolitan Borough.	Plan Number.	Name of Street.	Distinguishing Number on Plan.
Finsbury - - - - -	21	Vernon Square - - -	2
Paddington - - - - -	46	Emily Street - - -	6

PART III.

EDUCATION ACTS 1870-1911

AND

BOARD OF EDUCATION ACT 1899.

THE LONDON COUNTY COUNCIL.

*Provisional Order (No. 1) for putting in force the
 Lands Clauses Acts.*

*London
 County
 Council.*

WHEREAS the London County Council require to purchase certain lands for the purposes of Part II. of the Education Act 1902 and not having been able to purchase the same by agreement require to put in force the provisions of the Lands Clauses Acts which apply to the purchase and taking of lands otherwise than by agreement:

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*London
County
Council.*

And whereas the lands so required to be purchased are set forth in the schedule hereto:

And whereas the London County Council have made due publication of the notices and have duly served the same according to the requirements of the Education Acts 1870-1911 and have presented a petition to the Board of Education praying that an Order may be made authorising the said Council to put in force the powers of the said Acts with respect to the purchase and taking of lands otherwise than by agreement in which petition were stated all the matters required by the said Education Acts to be stated therein and the same hath been supported by such evidence as the said Board of Education required:

And whereas the Board of Education having considered the said petition and the proofs of the publication and service of the proper notices have thought fit to proceed with the case and have caused inquiries to be made in the districts wherein the said lands are situate as to the propriety of the proposed Order:

And whereas the Board of Education have received reports after the inquiries above mentioned and having duly considered the same are satisfied of the propriety of the proposed Order:

Now therefore the Board of Education do hereby order that the London County Council be authorised to put in force with reference to the lands set forth in the schedule hereto the powers of the said Acts (except the provisions relating to access to the Special Act) for the purchase and taking of lands otherwise than by agreement or any of them.

Given under the seal of office of the Board of Education this
fifteenth day of February one thousand nine hundred and
twelve.

(L.S.)

H. J. SIMMONDS

One of the Assistant Secretaries of the
Board of Education.

The SCHEDULE herein-before referred to.

METROPOLITAN BOROUGH OF HACKNEY.

Land including houses and premises known as Nos. 1 2 3 4 5 6 and 7 Laura Place Lower Clapton Road and the land and premises lying between No. 1 Laura Place and the houses and premises abutting on Lower Clapton Road containing 71,800 square feet or thereabouts as the same are shown on the plan accompanying the petition herein-before referred to and distinguished thereon by the Nos. 1 to 8 inclusive.

PART IV.

A.D. 1912.

EDUCATION ACTS 1870-1911

*London
County
Council.*

AND

BOARD OF EDUCATION ACT 1899.

THE LONDON COUNTY COUNCIL.

*Provisional Order (No. 2) for putting in force the
Lands Clauses Acts.*

WHEREAS the London County Council require to purchase divers pieces of land for the purposes of Part III. of the Education Act 1902 and not having been able to purchase the same by agreement require to put in force the provisions of the Lands Clauses Acts which apply to the purchase and taking of lands otherwise than by agreement:

And whereas the lands so required to be purchased are set forth in the schedule hereto;

And whereas the London County Council have made due publication of the notices and have duly served the same according to the requirements of the Education Acts 1870-1911 and have presented a petition to the Board of Education praying that an Order may be made authorising the said Council to put in force the powers of the said Acts with respect to the purchase and taking of lands otherwise than by agreement in which petition were stated all the matters required by the said Education Acts to be stated therein and the same hath been supported by such evidence as the Board of Education required:

And whereas the Board of Education having considered the said petition and the proofs of the publication and service of the proper notices have thought fit to proceed with the case and have caused inquiries to be made in the districts wherein the said lands are situate as to the propriety of the proposed Order:

And whereas so far as under subsection (2) of section 2 of the Education (London) Act 1903 the concurrence of the Council of any Metropolitan Borough is required to any compulsory acquisition authorised by this Order that Council concur in that proposed compulsory acquisition or where they do not concur the Board of Education are satisfied that their concurrence should be dispensed with:

And whereas the Board of Education have received reports after the inquiries above mentioned and having duly considered the same are satisfied of the propriety of the proposed Order:

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*London
County
Council.*

Now therefore the Board of Education do hereby order that the London County Council be authorised to put in force with reference to the lands set forth in the schedule hereto the powers of the said Acts (except the provisions relating to access to the special Act) for the purchase and taking of lands otherwise than by agreement or any of them.

Given under the seal of office of the Board of Education this third day of April one thousand nine hundred and twelve.

(L.S.)

H. J. SIMMONDS

One of the Assistant Secretaries of
the Board of Education.

The SCHEDULE herein-before referred to.

Plan No. 1.

METROPOLITAN BOROUGH OF BATTERSEA.

Land including houses and premises known as Nos. 29 31 33 35 37 39 41 43 and 45 Wye Street containing 7,410 square feet or thereabouts as the same are shown on the Plan No. 1 and distinguished thereon by the Nos. 1 to 9 inclusive.

Plan No. 2.

METROPOLITAN BOROUGH OF BATTERSEA.

Land including houses and premises known as Nos. 14 and 16 Lockington Road containing 1,900 square feet or thereabouts as the same are shown on the Plan No. 2 and distinguished thereon by the Nos. 1 and 2.

Plan No. 11.

METROPOLITAN BOROUGH OF BATTERSEA.

Land including houses and premises known as Nos. 50 52 54 56 58 60 and 62 Wakehurst Road and Nos. 47 49 51 53 55 and 57 Belleville Road containing 20,595 square feet or thereabouts as the same are shown on the Plan No. 11 and distinguished thereon by the Nos. 1 to 13 inclusive.

Plan No. 13.

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METROPOLITAN BOROUGH OF BETHNAL GREEN.

*London
County
Council.*

Land including houses and premises known as Nos. 8 10 12 14 16 and 18 Virginia Road the warehouses and wood yard known as Nos. 20-24 Virginia Road and the house and business premises known as Nos. 26 and 28 Virginia Road containing 11,405 square feet or thereabouts as the same are shown on the Plan No. 13 and distinguished thereon by the Nos. 1 to 8 inclusive.

Plan No. 15.

METROPOLITAN BOROUGH OF CAMBERWELL.

Land including houses and premises known as Nos. 2 4 6 8 10 (including the hall at the rear) 12 14 16 18 20 and 22 Cork Street Nos. 1 3 5 7 9 11 13 15 17 19 and 21 Chiswell Street and Nos. 64 66 68 70 72 74 76 78 80 82 84 and 86 Picton Street containing 43,740 square feet or thereabouts as the same are shown on the Plan No. 15 and distinguished thereon by the Nos. 1 to 34 inclusive.

Plan No. 16.

METROPOLITAN BOROUGH OF CAMBERWELL.

Land including houses and premises known as Nos. 8 10 12 14 and 16 Leipsic Road containing 9,300 square feet or thereabouts as the same are shown on the Plan No. 16 and distinguished thereon by the Nos. 1 to 5 inclusive.

Plan No. 17.

METROPOLITAN BOROUGH OF CAMBERWELL.

Land including houses and premises known as Nos. 118 120 122 124 126 128 130 and 132 Lower Park Road containing 11,955 square feet or thereabouts as the same are shown on the Plan No. 17 and distinguished thereon by the Nos. 1 to 8 inclusive.

Plan No. 18.

METROPOLITAN BOROUGH OF DEPTFORD.

Land including house and premises known as No. 27 Nynehead Street containing 1,165 square feet or thereabouts as the same are shown on the Plan No. 18 and distinguished thereon by the No. 1.

Plan No. 20.

METROPOLITAN BOROUGH OF FINSBURY.

Land including houses and premises known as Nos. 13 14 15 22 and 23 Albion Place containing 2,750 square feet or thereabouts as the same are shown on the Plan No. 20 and distinguished thereon by the Nos. 1 to 5 inclusive.

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Plan No. 21.

*London
County
Council.*

METROPOLITAN BOROUGH OF FINSBURY.

Land including houses and premises known as Nos. 12 and 21 Vernon Square and so much of Vernon Square as runs in a south westerly direction from the premises known as Nos. 11 and 12 Vernon Square containing 10,040 square feet or thereabouts as the same are shown on the Plan No. 21 and distinguished thereon by the Nos. 1 to 3 inclusive.

Plan No. 22.

METROPOLITAN BOROUGH OF FULHAM.

Land including houses and premises known as Nos. 12 14 16 and 18 Ongar Road containing 8,480 square feet or thereabouts as the same are shown on the Plan No. 22 and distinguished thereon by the Nos. 1 to 4 inclusive.

Plan No. 23.

METROPOLITAN BOROUGH OF GREENWICH.

Land including houses and premises known as Nos. 20 22 and 24 Straightsmouth containing 2,100 square feet or thereabouts as the same are shown on the Plan No. 23 and distinguished thereon by the Nos. 1 to 3 inclusive.

Plan No. 24.

METROPOLITAN BOROUGH OF GREENWICH.

Land including houses and premises known as Nos. 2 3 4 and 5 Rockfield Street Nos. 2 4 6 8 10 12 and 14 Pages Avenue Nos. 9 11 13 (including the yard in the rear thereof) 15 17 19 21 23 25 27 29 31 33 35 and 37 Billingsgate Street and Nos. 1 2 3 4 5 and 6 Baker's Yard Baker's Yard together with the washhouses therein and the yard in common to and at the rear of Nos. 23 25 and 27 Billingsgate Street containing 27,140 square feet or thereabouts as the same are shown on the Plan No. 24 and distinguished thereon by the Nos. 1 to 35 inclusive.

Plan No. 37.

METROPOLITAN BOROUGH OF LAMBETH.

A piece of land bounded on the north-west side thereof by Crown Court on the south-west side thereof by Wake Street on the south-east side thereof by the Council's school in Lollard Street and on the north-east side thereof by premises abutting on Lollard Street containing 1,030 square feet or thereabouts as the same is shown on the Plan No. 37 and distinguished thereon by the No. 1.

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Plan No. 38.

A.D. 1912.

METROPOLITAN BOROUGH OF LAMBETH.

*London
County
Council.*

Land on the north and east sides of the premises known as Nos. 15 17 19 21 23 and 25 Gipsy Road containing 17,120 square feet or thereabouts as the same is shown on the Plan No. 38 and distinguished thereon by the No. 1.

Plan No. 40.

METROPOLITAN BOROUGH OF LEWISHAM.

Land including houses and premises known as Nos. 20 22 24 26 28 30 and 32 Vian Street and premises known as the Lewisham Bridge Mission School abutting on Shrubbery Road containing 11,965 square feet or thereabouts as the same are shown on the Plan No. 40 and distinguished thereon by the Nos. 1 to 9 inclusive.

Plan No. 41.

METROPOLITAN BOROUGH OF LEWISHAM.

A piece of garden ground on the south-west side of Nos. 159 and 161 Adamsrill Road containing 46,695 square feet or thereabouts as the same is shown on the Plan No. 41 and distinguished thereon by the No. 1.

Plan No. 46.

METROPOLITAN BOROUGH OF PADDINGTON.

Land including houses and premises known as Nos. 1 3 5 7 9 11 2 4 6 8 10 and 12 Emily Street No. 1 Dartington Terrace Nos. 26 27 28 29 30 31 32 33 and 34 Senior Street Nos. 2 4 6 8 10 and 12 Phillip Terrace No. 37B Westbourne Terrace North and Nos. 1 2 3 4 5 6 7 and 8 Stalham Street and so much of Emily Street as abuts upon the premises described in that street and Nos. 28 and 29 Senior Street containing 34,305 square feet or thereabouts as the same are shown on the Plan No. 46 and distinguished thereon by the Nos. 1 to 38 inclusive.

Plan No. 47.

METROPOLITAN BOROUGH OF PADDINGTON.

Land including house and premises known as No. 11 Bravington Road containing 1,440 square feet or thereabouts as the same are shown on the Plan No. 47 and distinguished thereon by the No. 1.

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*London
County
Council.*

Plan No. 50.

METROPOLITAN BOROUGH OF ST. PANCRAS.

Land including house and premises known as No. 15 Stanhope Street and a piece of land at the junction of Stanhope Street and Seaton Street and adjoining No. 15 Stanhope Street containing 1,225 square feet or thereabouts as the same are shown on the Plan No. 50 and distinguished thereon by the Nos. 1 and 2.

Plan No. 51.

METROPOLITAN BOROUGH OF ST. PANCRAS.

Land including house and premises known as No. 14 Reeds Place containing 1,240 square feet or thereabouts as the same are shown on the Plan No. 51 and distinguished thereon by the No. 1.

Plan No. 57.

METROPOLITAN BOROUGH OF SHOREDITCH.

Land including houses and premises known as Nos. 48 50 52 54 56 58 60 62 64 and 66 Mintern Street and No. 68 Nicholas Street containing 13,100 square feet or thereabouts as the same are shown on the Plan No. 57 and distinguished thereon by the Nos. 1 to 11 inclusive.

Plan No. 58.

METROPOLITAN BOROUGH OF SOUTHWARK.

Land including houses and premises known as Nos. 62 64 66 and 68 Beresford Street containing 8,840 square feet or thereabouts as the same are shown on the Plan No. 58 and distinguished thereon by the Nos. 1 to 4 inclusive.

Plan No. 59.

METROPOLITAN BOROUGH OF SOUTHWARK.

Land including houses and premises known as Nos. 58 60 62 64 66 68 and 70 Villa Street containing 8,200 square feet or thereabouts as the same are shown on the Plan No. 59 and distinguished thereon by the Nos. 1 to 7 inclusive.

Plan No. 60.

METROPOLITAN BOROUGH OF STEPNEY.

Land including a factory and workshop close to the north-east corner of Stepney Square and adjoining on the north and east sides premises used for school purposes containing 1,850 square feet or thereabouts as the same are shown on the Plan No. 60 and distinguished thereon by the No. 1.

Plan No. 62.

A.D. 1912.

METROPOLITAN BOROUGH OF WANDSWORTH.

*London
County
Council.*

Land including house and premises known as No. 6 Martin's Buildings Frogmore containing 495 square feet or thereabouts as the same are shown on the Plan No. 62 and distinguished thereon by the No. 1.

Plan No. 64.

METROPOLITAN BOROUGH OF WANDSWORTH.

Land including houses and premises known as Nos. 84 86 88 and 90 St. Ann's Hill and Nos. 11 and 12 Pentland Street containing 75,740 square feet or thereabouts as the same are shown on the Plan No. 64 and distinguished thereon by the Nos. 1 to 8 inclusive.

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